

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Morgan Galloway	Team: Squad #8	CCRB Case #: 201706641	☒ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 08/08/2017 7:02 PM, Wednesday, 08/09/2017	Location of Incident: 75th Precinct stationhouse; PSA 2 stationhouse	Precinct: 75	18 Mo. SOL 2/8/2019	EO SOL 2/8/2019	
Date/Time CV Reported Wed, 08/09/2017 2:25 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 08/14/2017 2:08 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Jamarr Burnett	18784	954585	PSA 2
2. POM Andrae Fernandez	28309	945713	PSA 2
3. POM Paul Asnen	21237	959461	PSA 2
4. An Officer			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Michael Mercorio	15135	960937	PSA 2

Officer(s)	Allegation	Investigator Recommendation
A.POM Jamarr Burnett	Abuse: En route to the 75th Precinct stationhouse, Police Officer Jamarr Burnett threatened § 87(2)(b) with the use of force.	
B.POM Jamarr Burnett	Discourtesy: En route to the 75th Precinct stationhouse, Police Officer Jamarr Burnett spoke discourteously to § 87(2)(b)	
C.POM Jamarr Burnett	Force: At the 75th Precinct stationhouse, Police Officer Jamarr Burnett used physical force against § 87(2)(b)	
D.POM Jamarr Burnett	Abuse: En route to the PSA 2 stationhouse, Police Officer Jamarr Burnett threatened § 87(2)(b) with the use of force.	
E.POM Jamarr Burnett	Discourtesy: En route to the PSA 2 stationhouse, Police Officer Jamarr Burnett spoke discourteously to § 87(2)(b)	
F.POM Paul Asnen	Abuse: At the PSA 2 stationhouse, Police Officer Paul Asnen did not obtain medical treatment for § 87(2)(b)	
G. An Officer	Abuse: At the PSA 2 stationhouse, an officer did not obtain medical treatment for § 87(2)(b)	
H.POM Jamarr Burnett	Abuse: At the PSA 2 stationhouse, Police Officer Jamarr Burnett threatened to damage § 87(2)(b)'s property.	
I.POM Andrae Fernandez	Discourtesy: Police Officer Andrae Fernandez spoke discourteously to § 87(2)(b)	

Case Summary

On August 8, 2017 at 7:02 p.m. on Vermont Street at Linden Boulevard in Brooklyn, § 87(2)(b) was arrested for § 87(2)(b). § 87(2)(b) was transported from the site of the arrest to the 75th Precinct stationhouse by PSA 2 officers, Police Officer Michael Mercorio and Police Officer Jamarr Burnett. En route to the 75th Precinct stationhouse, PO Burnett allegedly said, "Keep on talking like that and we're gonna beat your ass...we're gonna fuck you up" when § 87(2)(b) said they could not help him while he was in handcuffs. **(Allegations A and B)** While being escorted into the 75th Precinct stationhouse, PO Burnett is alleged to have bent and twisted § 87(2)(b)'s arms at the wrists and elbows, pulling his arms up and behind him to jerk him backwards, toward PO Burnett. **(Allegation C)** En route to the PSA 2 stationhouse after a debriefing at the 75th Precinct stationhouse, PO Burnett said "we gonna see if you're really about that...that they say about you," referring to § 87(2)(b)'s reputation for violent behavior and allegedly threatened to "fuck § 87(2)(b) up." **(Allegations D and E)** While at the PSA 2 stationhouse § 87(2)(b) allegedly asked Police Officer Paul Asnen (PSA 2) and another officer for medical attention but was refused. **(Allegations F and G)** When § 87(2)(b) was in the holding cell at PSA 2, § 87(2)(b) claims PO Burnett took out a knife, and threatened to cut § 87(2)(b)'s clothing up. **(Allegation H)**

On August 9, § 87(2)(b) returned to the PSA 2 stationhouse following his release to pick up his personal items and file a complaint. While waiting in the lobby, PSA 2 Police Officer Andrae Fernandez, who initially stopped § 87(2)(b) on August 8 and transported his vehicle back to the PSA 2 stationhouse, walked through, and is alleged to have said to § 87(2)(b) "I'm gonna beat this shit...nothing's gonna happen." **(Allegation I)** There is no video footage for this complaint.

Mediation, Civil and Criminal Histories

- § 87(2)(b)'s case was not suitable for mediation because he was incarcerated throughout the duration of the investigation.
- As of November 22, 2017, there was no Notice of Claim regarding this complaint. (BR 01)
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- § 87(2)(b) had filed five previous complaints, two of which resulted in full investigations § 87(2)(b)
- § 87(2)(g)
- This is Police Officer Jamarr Burnett's first CCRB complaint.
- Police Officer Andrae Fernandez was a subject officer in one previous complaint that was closed out as victim uncooperative.
- This is Police Officer Paul Asnen's first CCRB complaint.

Allegation B—Discourtesy: En route to the 75th Precinct stationhouse, Police Officer Jamarr Burnett spoke discourteously to § 87(2)(b)

PO Mercurio said that, while being transported to the 75th Precinct stationhouse, § 87(2)(b) was upset and cursing about how it was not fair he was being arrested. (BR 07) PO Mercurio could not recall who specifically told § 87(2)(b) that they were only transporting him, and, thus, did not know the circumstances surrounding his arrest, but he remembered both he and PO Burnett speaking to him. PO Mercurio could not recall the details of the conversation in the patrol vehicle beyond § 87(2)(b) saying he would report “everyone” for unspecified reasons, and that he did not deserve to be arrested. He “absolutely [did] not” hear PO Burnett say, “Keep on talking like that and we’re gonna beat your ass...we’re gonna fuck you up.” PO Mercurio did not hear PO Burnett use profanity at any point during the drive from the scene of the arrest—at Vermont Street and Linden Boulevard in Brooklyn—to the 75th Precinct stationhouse, nor did he use profanity himself.

§ 87(2)(g)

During his VTC interview, § 87(2)(b) recalled that after he, PO Burnett, and PO Mercorio arrived at the 75th Precinct stationhouse, PO Burnett was twisting and bending his arms while walking to the entrance. (BR 04) § 87(2)(b) said PO Burnett grabbed him by his left wrist and elbow first, and twisted inwards, toward § 87(2)(b)'s body. § 87(2)(b) was interviewed in-person at § 87(2)(b) six weeks after the incident took place. During this interview, § 87(2)(b) showed the undersigned investigator a red line in each inner elbow area of his arms. (BR 05) He said these lines were a result of PO Burnett twisting his arms, and the reason that they were straight red marks was because § 87(2)(b) bruises easily. § 87(2)(b) did not feel PO Burnett's fingernails in his skin while he was twisting his arms. § 87(2)(b) additionally said that PO Burnett was yanking him backwards and said, "If I don't walk, you don't walk." § 87(2)(b) said he was not resisting or trying to get out of PO Burnett's grasp.

In his statement, PO Mercorio said he stood on the driver's side of the vehicle while PO Burnett assisted § 87(2)(b) out. (BR 07) He remained at the patrol vehicle while they went inside, but he was able to see PO Burnett escort § 87(2)(b) inside. § 87(2)(b) had calmed down after being agitated during the drive, and did not struggle or resist during the walk up. PO Mercorio did not see PO Burnett bend or twist § 87(2)(b)'s arms. He did not see PO Burnett yank § 87(2)(b) backwards, and § 87(2)(b) did not seem to be walking quickly.

[illegible]

Allegation E—Discourtesy: En route to the PSA 2 stationhouse, Police Officer Jamarr Burnett spoke discourteously to § 87(2)(b)

Page 4

out.” The detective told PO Burnett to leave § 87(2)(b) alone because he was being calm, and whispered, “You’re messin’ with him, and he’s not gonna stop what he started.” The detective escorted them back to the patrol vehicle after learning that PO Mercorio remained outside and would not be assisting PO Burnett in § 87(2)(b)’s escort back to the patrol vehicle. § 87(2)(b) said that once he, PO Burnett, and PO Mercorio left the 75th Precinct stationhouse to drive to the PSA 2 stationhouse, PO Burnett said, “We gonna see if you’re really about that...what they say about you,” and that he “is gonna fuck him up.”

In his statement, PO Burnett denied that he was present for the de-briefing at the 75th Precinct stationhouse. (BR 06) He denied that anyone talked to him about § 87(2)(b)’s history, and he denied knowing about his history. Additionally, he could not recall who from the 75th Precinct detective squad debriefed § 87(2)(b). PO Burnett said he remained silent during the car ride between the 75th Precinct and the PSA 2 stationhouse. He did not say, “We’re gonna see if you’re really about that, what they say about you... We’re gonna fuck you up.”

During his CCRB interview, PO Mercorio said that the detective from the 75th Precinct escorted PO Burnett and § 87(2)(b) back to the patrol vehicle. (BR 07) PO Mercorio did not know who this detective was, but recalled him saying that he was escorting PO Burnett and § 87(2)(b) for PO Burnett’s safety; the detective told PO Mercorio that § 87(2)(b) had a history of being aggressive towards officers and trying to run. He could not recall whether § 87(2)(b) made comments regarding his criminal history and not being afraid of the officers, and PO Mercorio was not present for the debriefing. He did not remember PO Burnett saying, “We’re gonna see if you’re really about that...what they say about you,” or that PO Burnett was “gonna fuck him up.”

§ 87(2)(g)

Allegation F—Abuse of Authority: At the PSA 2 stationhouse, Police Officer Paul Asnen did not obtain medical treatment for § 87(2)(b)

Allegation G—Abuse of Authority: At the PSA 2 stationhouse, an officer did not obtain medical treatment for § 87(2)(b)

During his VTC interview, § 87(2)(b) stated that he was denied medical attention several times while at the PSA 2 stationhouse. (BR 04) He said he asked the desk sergeant, who he described as a short, Hispanic male in uniform, Police Officer Andrae Fernandez, and Police Officer Paul Asnen to go to the hospital because his arms were injured from PO Burnett twisting them. He said they each told him that receiving medical attention would prolong his stay. In his in-person statement § 87(2)(b), § 87(2)(b) maintained that he asked the desk sergeant for medical attention, but he described him as being a chubby white male with reddish hair and in plainclothes. (BR 05) This desk sergeant took his pedigree information, and also told him that medical attention would prolong his incarceration. During the same in-person statement he said

he asked PO Asnen for medical attention while he was processing his arrest. He did not say that he asked PO Fernandez for medical attention during this in-person interview.

In his CCRB statement, PO Asnen identified the desk sergeant as Sergeant John Cerillo. (BR 08) Sgt. Cerillo has dark brown, almost black hair, and wears glasses. He does not appear either Hispanic, as § 87(2)(b) stated during his VTC interview, nor does he appear to have reddish brown hair, as he said in his in-person interview § 87(2)(b). Furthermore, PO Asnen said that he processed § 87(2)(b)'s arrest, including searching him at the front desk.

PO Asnen recalled § 87(2)(b) asking him to go to the hospital because he was feeling cold. (BR 08) PO Asnen offered to give him back his sweatshirt after taking the strings out. § 87(2)(b) accepted this response and did not ask for medical attention again. PO Asnen did not tell § 87(2)(b) that seeking medical attention would prolong his stay, nor did he hear any officers say likewise. PO Asnen did not hear § 87(2)(b) ask PO Fernandez for medical attention.

PO Fernandez, a black male, said that he began processing some of § 87(2)(b)'s paperwork before § 87(2)(b) arrived with PO Burnett and PO Mercorio. (BR 09) PO Fernandez remained at the front desk while he was searched and his personal effects were accounted for. PO Fernandez never heard § 87(2)(b) say he was cold or request medical attention.

PO Mercorio also stated that he never heard § 87(2)(b) ask any officer for medical attention. (BR 07)

§ 87(2)(g)

Allegation H—Abuse of Authority: At the PSA 2 stationhouse, Police Officer Jamarr Burnett threatened to damage § 87(2)(b)'s property.

In his VTC interview, § 87(2)(b) said that, while he was in the PSA 2 holding cell area, but not yet in a cell, he started to “go off” on PO Burnett for bending and twisting his arms and threatening him earlier. (BR 04) He told PO Burnett that if he came any closer, “I’m gonna knock [you] straight clean out.” § 87(2)(b) said that he and PO Burnett had to be separated by other officers. Once § 87(2)(b) was in the cell, PO Burnett grabbed the clothes he had checked in as his personal effects and threatened to cut them up with a black folding knife. § 87(2)(b) said he then began kicking the holding cell gate and said, “Let me out you pussy!” PO Asnen and three other prisoners were present for this exchange.

In his phone statement, § 87(2)(b) who was present in the cells with § 87(2)(b) stated that a short, black male prisoner in his late 30s with a ponytail threatened to cut him with a knife. (BR 11) He said this prisoner was already in the cells when § 87(2)(b) arrived, and was transported to Central Booking in the same van as this prisoner. § 87(2)(b) said this prisoner

